

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

This Class Justification for Other than Full and Open Competition (JOFOC) below has been developed in accordance with Federal Acquisition Regulation (FAR) 6.303-2.

1. IDENTIFICATION:

U.S. Department of Education (Department)
Contracts and Acquisitions Management (CAM)

2. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED:

The Department seeks to negotiate and award a class of sole-source firm-fixed price contracts to approximately fifty¹ individual State Education Agencies (SEA) in support of Public Law 107-279 Education Science Reform Act of 2002. The Department will contract with SEAs to support participation in the National Center for Education Statistics (NCES) State Partnership System.

3. DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS:

Project Title:

National Center for Education Statistics State Partnership System

Description of Supplies or Services:

Legislation provides the Department authority to provide funding for the administration of the National Assessment of Educational Progress (NAEP) to provide state level performance results. Additionally, the legislation requires the Department to provide technical assistance to states in carrying out the NAEP. The objective of these procurements is to establish a partnership between individual SEAs and NCES. The partnership enables NCES to provide SEAs with the technical assistance described in the legislation. The proposed action will allow SEA's to participate in activities and projects developed by the Department to further establish the purpose of the partnership.

Period of Performance:

One base period of performance beginning April 1, 2025 – March 31, 2026 plus nine option years.

Estimated Amount:

The Department expects to award a single sole-source contract to each SEA. The cumulative value of the estimated 50 awards for the duration of the contracts is estimated to be [REDACTED]². The value for each individual state award will vary depending on the size of the state and the levels of assistance required. The following chart depicts the planned value of each state contract, inclusive of one base year and nine option years. Please note that this chart does not include price information for one state that is not expected to submit a proposal (Texas). It should also be noted that no 'single' contract value

¹ There are more than fifty eligible states and territories. The Department does not know what states will ultimately submit proposals, so this Justification provides estimates based on historical data available.

² This value represents the sum of costs associated with State Coordinators and Basic Participation as detailed on Page 2-4 of this justification. It includes a base year plus nine option years.

exceeds \$3.5M. The highest anticipated contract is with the State of Connecticut valued at approximately \$3.4M.

2025-2036 NAEP State Coordinator IGCE by State			
State	NAEP Total	Basic Participation Total	State Total
Alabama			
Alaska			
Arizona			
Arkansas			
California			
Colorado			
Connecticut			
Delaware			
Florida			
Georgia			
Hawaii			
Idaho			
Illinois			
Indiana			
Iowa			
Kansas			
Kentucky			
Louisiana			
Maine			
Maryland			
Massachusetts			
Michigan			
Minnesota			
Mississippi			
Missouri			
Montana			
Nebraska			
Nevada			
New Hampshire			
New Jersey			
New Mexico			
New York			
North Carolina			
North Dakota			
Ohio			
Oklahoma			
Oregon			
Pennsylvania			
Rhode Island			
South Carolina			
South Dakota			
Tennessee			
Texas			
Utah			
Vermont			
Virginia			
Washington			
West Virginia			
Wisconsin			
Wyoming			

Participation in the program shall involve a continuing relationship between SEAs and NCES and will include the designation of a NAEP State Coordinator. The Coordinator shall act as the SEA representative in the schools for the administration of the assessment and in other matters concerning the program. It will also designate participants in the Cooperative System that can speak to state interests and provide recommendations concerning the program.

6. DESCRIPTION OF EFFORTS MADE TO ENSURE OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS PRACTICABLE:

The individual state and territorial SEAs are the only SEAs that exist with the capability to perform. There is no other state agency capable and prepared to facilitate the NAEP assessment. Therefore, offers will be solicited from the only known source available: SEAs from all participating states and territories.

7. DETERMINATION BY CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE:

The Contracting Officer anticipates the price will be fair and reasonable based on historical pricing. The estimated amounts of the awards to the SEAs is based on an Independent Government Cost Estimate (IGCE) created from historical data for similar requirements for implementing and coordinating the NAEP administration in the state, promoting understanding and use of NAEP, and analyzing and reporting NAEP results. Estimated awards are also based on the IGCE for the Cooperative System created from historical data for similar requirements. Therefore, the anticipated cost to the government can be determined fair and reasonable based on historical data for the expenses incurred by similar contracts in place in the previous five years. In addition, salary information for state employees can be found online via internet research.

8. DESCRIPTION OF MARKET SURVEY AND RESULTS, OR STATEMENT WHY MARKET SURVEY WAS NOT CONDUCTED:

A market survey was not conducted as the requirement must be performed by the SEAs as detailed in earlier sections.

9. OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION:

N/A

10. SOURCES, IF ANY, WHICH HAVE EXPRESSED INTEREST IN THE ACQUISITION IN WRITING:

There were no sources that provided written interest in the acquisition.

11. STATEMENT OF ACTIONS, IF ANY, TO REMOVE OR OVERCOME BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES:

No actions are anticipated to overcome barriers due to the nature of the requirement.

12. CONTRACTING OFFICER (CO) CERTIFICATION THAT THE JUSTIFICATION IS ACCURATE AND COMPLETE TO THE BEST OF THE CO'S KNOWLEDGE AND BELIEF, AND THIS PROCUREMENT IS NOT A RESULT OF A LACK OF PLANNING OR EXPIRATION OF FUNDS:

This justification is complete and accurate to the best of the Contracting Officer's knowledge and belief and approval of this document is recommended.

[DOCUMENT CONTINUES TO SIGNATURE PAGES]

Program Office Certification

This is to certify that the data supporting this justification is the responsibility of the program office personnel, including verifying the Government's minimum needs or schedule requirements for other than full and open competition justification (pursuant to 6.303-2(b)) which forms the basis for this justification, and that such data and rationale are accurate and complete.

**HOLLY
MARTIN**



Holly Spurlock-Martin

Branch Chief, Assessment Operations

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HOLLY MARTIN
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Contracting Officer Certification

This is to certify that the data supporting this justification is the responsibility of the undersigned program office personnel, including verifying the Government's minimum needs or schedule requirements for other than full and open competition justification (pursuant to 6.303-2(b)) which form a basis for this justification, and that such data and rationale are accurate and complete.

**COLIN
ALLEYNE**

Colin Alleyne

Contracting Officer

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Thomas Smith

Chief of the Contracting Office

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CHRISTOPHER ROSIER

Chris Rosier

Head of Contracting Activity (HCA)

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Approved

CALVIN MITCHELL

Calvin J. Mitchell Jr., CFCM

Senior Procurement Executive (SPE)

Deputy Assistant Secretary for Acquisition Management

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